

1 ENGROSSED SENATE
2 BILL NO. 2028

By: Wingard, Bullard, Murdock,
Deevers, Jett, and Frix of
the Senate

3
4 and

Hardin of the House

5
6
7 An Act relating to the Oklahoma Milk and Milk
8 Products Act; amending 2 O.S. 2021, Section 7-413,
9 which relates to violations; expanding violations;
10 requiring warning labels on containers of raw or
11 unpasteurized milk and raw milk products; directing
12 the Oklahoma Department of Agriculture, Food, and
13 Forestry to develop and produce warning labels;
14 requiring warning label to be affixed to certain
15 products prior to sale or distribution; authorizing
the Oklahoma Department of Agriculture, Food, and
Forestry to promulgate rules; amending 2 O.S. 2021,
Section 7-414, which relates to construction of act;
allowing for certain sales of ungraded raw milk and
raw milk products; restricting the advertisement of
the sale of ungraded raw milk; increasing average
monthly yield for incidental sales; providing for
codification; and declaring an emergency.

16
17 BE IT ENACTED BY THE PEOPLE OF THE STATE OF OKLAHOMA:

18 SECTION 1. AMENDATORY 2 O.S. 2021, Section 7-413, is
19 amended to read as follows:

20 Section 7-413. It shall be unlawful for any person to
21 knowingly, willfully, or recklessly:

22 1. Attempt to produce, haul, process, or distribute milk or
23 milk products without an appropriate and valid permit;
24

1 2. Sell, offer, or expose for sale as Grade A any adulterated
2 or misbranded milk or milk product;

3 3. Sell, offer, expose for sale, or serve milk and milk
4 products which have not been maintained at or below the temperature
5 specified by the State Board of Agriculture;

6 4. Sell, offer, expose for sale, or serve raw milk or raw milk
7 products without notifying the consumer that the product is not
8 licensed, regulated, or inspected;

9 5. Sell, offer, expose for sale, or serve raw milk or raw milk
10 products without labeling the container of such raw milk or raw milk
11 products to indicate to the consumer that the product is raw or
12 unpasteurized milk and the date the milk was filled in accordance
13 with Section 2 of this act;

14 6. Dip or ladle Grade A milk and milk products;

15 ~~5.~~ 7. Transfer Grade A milk and milk products at any location
16 other than a permitted Grade A facility designed and equipped for
17 such purpose;

18 ~~6.~~ 8. Prevent, interfere, or attempt to impede the Commissioner
19 of Agriculture from investigating and enforcing the Oklahoma Milk
20 and Milk Products Act;

21 ~~7.~~ 9. Sell or serve Grade A milk and milk products from other
22 than the individual container, or approved bulk dispenser, received
23 from the distributor; or
24

1 ~~8.~~ 10. Violate any provision of the Oklahoma Milk and Milk
2 Products Act.

3 SECTION 2. NEW LAW A new section of law to be codified
4 in the Oklahoma Statutes as Section 7-413.1 of Title 2, unless there
5 is created a duplication in numbering, reads as follows:

6 A. Any container of raw milk or raw milk products sold, offered
7 for sale, or distributed shall be labeled with a visible warning
8 label and the date the milk was filled in accordance with this
9 section.

10 B. The Oklahoma Department of Agriculture, Food, and Forestry
11 shall produce a warning label and shall make that warning label
12 available to all producers selling raw or unpasteurized milk through
13 the Department's website. The warning label shall include
14 statements that are substantially similar to the following:

15 1. Raw (unpasteurized) milk and raw milk products are not
16 licensed, regulated, or inspected and may contain harmful bacteria
17 that can cause serious illness; and

18 2. Pregnant women, unborn babies, children, the elderly, and
19 people with weakened immune systems are at higher risk of serious
20 illness from consuming raw milk.

21 C. Every producer of raw or unpasteurized milk shall affix the
22 warning label described in subsection B of this section prior to the
23 sale or distribution of such milk or milk products.

1 D. The Department shall promulgate rules necessary to implement
2 the provisions of this section including, but not limited to, the
3 size, placement, and content of the warning label.

4 SECTION 3. AMENDATORY 2 O.S. 2021, Section 7-414, is
5 amended to read as follows:

6 Section 7-414. A. The provisions of the Oklahoma Milk and Milk
7 Products Act shall not be construed to:

8 1. Include incidental sales of ungraded raw milk or raw milk
9 products directly to consumers at the farm where the ungraded raw
10 milk or raw milk products ~~is~~ are produced;

11 2. Preclude the advertising of the incidental sale of goat
12 milk; ~~and~~

13 3. Preclude the advertising of the sale of ungraded raw milk
14 and raw milk products; and

15 4. Prohibit any farmer or producer from making cheese using
16 milk or cream produced on the farm of such farmer or producer.

17 B. For purposes of this section, incidental sales of ~~goat~~ milk
18 are those sales where the average monthly number of gallons sold
19 does not exceed ~~one hundred (100)~~ one thousand five hundred (1,500).

20 SECTION 4. It being immediately necessary for the preservation
21 of the public peace, health or safety, an emergency is hereby
22 declared to exist, by reason whereof this act shall take effect and
23 be in full force from and after its passage and approval.

1 Passed the Senate the 16th day of March, 2026.

2
3 _____
4 Presiding Officer of the Senate

5 Passed the House of Representatives the ____ day of _____,
6 2026.

7
8 _____
9 Presiding Officer of the House
10 of Representatives